

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

OMNI LOGISTICS LLC, *et al.*,
RESPONDENTS.

DECLARATION OF GENE M. BURD

I, GENE M. BURD, under penalty of perjury and pursuant to 28 U.S.C. § 1746, declare that the factual statements contained herein are made of my personal knowledge and are true and correct.

1. I am over the age of 18 and am otherwise *sui juris*.
2. I am a partner with the law firm Pierson Ferdinand LLP, counsel for TPG Pressure, Inc. (“TPG”) in this action.
3. On April 30, 2024, Epic Freight Solutions LLC (“Epic Freight”) and Omni Logistics LLC (“Omni Logistics” and, collectively with Epic Freight, “Respondents”) filed their Motion to File Sur-Reply and Supplement the Record (“Sur-Reply Motion”) without any attempt to first confer with TPG.
4. On May 7, 2024, within 7 days after the date of service of the motion pursuant to 46 CFR § 502.7, I transmitted TPG’s Response in Opposition to Respondents’ Motion to File Sur-Reply and Supplement the Record (“Sur-Reply Opposition”) by email to Judges@FMC.gov with a copy to secretary@FMC.gov and Respondents’ counsel. A true and correct copy of the email with the attached Sur-Reply Opposition is attached hereto as Exhibit A.
5. The manner of filing the Sur-Reply Opposition has been customary throughout the proceeding. Each time TPG’s submissions were transmitted to the same email addresses, they were docketed by the Commission.
6. On May 15, 2024, the Presiding Officer issued the Order granting Respondents’ Sur-Reply Motion because “[t]he time for TPG to object to the sur-reply has expired without any

objection being received.” That was the first time when I learned that, for reasons unknown to me, the Sur-Reply Opposition had not been entered on the Commission docket.

7. On the same day, I sent an email to the Commission in an attempt to clarify the situation. A true and correct copy of the May 15, 2024 email is attached hereto as Exhibit B. I also called the Commission on May 15 and May 16, 2024, at the phone number 202-523-5750 and left voicemails. No response to the email or my voicemails was received.

I declare under penalty of perjury that the foregoing is true and correct.

Dated: May 17, 2024

Washington D.C.

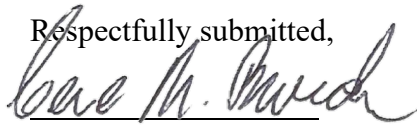
Respectfully submitted,

Gene Burd

Exhibit A

Docket No. 22-31 - TPG Pressure, Inc. v. Omni Logistics LLC and Epic Freight Solutions LLC**Gene Burd** <gene.burd@pierferd.com>

Tue 2024-05-07 6:49 PM

To: Judges@FMC.gov <Judges@FMC.gov>

Cc: Tiffany Comprés <tiffany.compres@pierferd.com>; Kristin Drecktrah Paz <kristin.paz@pierferd.com>; Vitaly Morozov <vitaly.morozov@pierferd.com>; NLacey@beneschlaw.com <NLacey@beneschlaw.com>; mblubaugh@Beneschlaw.com <mblubaugh@Beneschlaw.com>; secretary@FMC.gov <secretary@FMC.gov>

 1 attachments (194 KB)

TPG v. Epic (FMC 22-31) Opposition to Respondents' Motion for Leave to File Sur-Reply.pdf;

Please find attached Complainant's Response in Opposition to Respondents' Motion for Leave to File Sur-Reply and to Supplement the Record.

Kindly acknowledge the receipt.

Gene M. Burd
Partner/Co-Chair International Disputes

**PIERSON FERDINAND**

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BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

EPIC FREIGHT SOLUTIONS LLC and
OMNI LOGISTICS LLC,
RESPONDENTS.

**COMPLAINANT’S RESPONSE IN OPPOSITION TO RESPONDENTS’
MOTION FOR LEAVE TO FILE SUR-REPLY AND TO SUPPLEMENT THE RECORD**

Complainant TPG Pressure, Inc. (“**TPG**” or “**Complainant**”), through its undersigned counsel, hereby files its opposition to Respondents’ Motion for Leave to File a Sur-Reply and to Supplement the Record submitted by Epic Freight Solutions LLC (“**Epic Freight**”) and Omni Logistics LLC (“**Omni Logistics**” and, collectively with Epic Freight, “**Respondents**”). (Doc. No 61; Dkt. 22-31) (hereinafter “**Respondents’ Motion**” or the “**Motion**”).

Respondents’ Motion is procedurally defective and substantively inadequate. Procedurally, Respondents’ Motion is flawed because Respondents have failed to comply with the meet-and-confer requirement as mandated by 46 C.F.R. § 502.71. Further, Respondents have impermissibly introduced their Sur-Reply into the record before obtaining leave to do so. On substance, Respondents’ Motion baselessly claims that TPG submitted new evidence and raised a new damages theory with its Reply Brief. The truth is that TPG did not submit any new evidence in its Reply and the TPG’s arguments that Respondents mischaracterize as “new” are only rebuttals of the Respondents’ assertions. The Motion improperly attempts to gain an unfair

advantage by having the last word and endlessly prolong the briefing process. Finally, Respondents should not be permitted to belatedly introduce new evidence that they have had ample opportunity to present earlier in the proceedings without giving Complainant an opportunity to address that evidence. To avoid prejudice against Complainant, Respondents' Motion must be dismissed in its entirety and stricken from the record.

FACTUAL BACKGROUND

TPG's *Opening Brief* dated February 22, 2024 ("TPG's **Opening**"), relied on two charts: the Shipment Chart and Damages Chart. As their names reflect, the former identified TPG's shipment invoices and the latter its damages.

Respondents filed their *Joint Response to Complainant's Opening Brief, Proposed Findings of Fact, Responses to Complainant's Proposed Findings of Fact, and Appendix* on March 25, 2024 (the "**Joint Response**"). The Joint Response argued, among other things, that the Shipment Chart and Damages Chart were inadmissible and that TPG's damages were otherwise defective for a variety of reasons. (*See, e.g.,* Joint Response at p. 2; *e.g.,* Resp'ts' Responses to Compl't's Proposed Findings of Fact at 21.)

TPG filed its Reply Brief on April 9, 2024 (the "**Reply**"). With its Reply, TPG submitted the same Shipment Chart and Damages Chart, adjusted to *exclude* the damages no longer claimed by TPG. TPG did not *add* any damages and did not submit any additional documents underlying Shipment Chart and Damages Chart. TPG simply responded to the arguments in the Joint Response by providing further information about the charts.

On April 30, 2024, three weeks after the Reply was filed, Respondents, without seeking to meet and confer with TPG, filed their Motion seeking a leave to file a sur-reply, contending

that TPG introduced new legal theory and new evidence in its Reply. The Motion attaches the proposed sur-reply as an exhibit.

ARGUMENT

I. Respondents Failed to Meet and Confer with TPG

The Federal Maritime Commission 46 C.F.R. § 502.71 mandates the following procedure for non-dispositive motions:

(a) *Duty to confer.* Before filing a non-dispositive motion as defined in § 502.69(g) of this subpart, the parties must attempt to discuss the anticipated motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The moving party must state within the body of the motion what attempt was made or that the discussion occurred and whether the motion is opposed.

Respondents' Motion is a non-dispositive motion as defined in 46 C.F.R § 502.69(g). The Motion makes no mention that Respondents made any effort to confer with Complainant. In fact, Respondents never made any attempts to discuss the anticipated motion with the Complainant's counsel at any time before filing their motion with the FMC. Respondent's Motion, filed three weeks after the Reply, came as an unfair surprise to TPG, especially at this stage when the proceedings had been fully briefed. Respondents had ample opportunity to meet and confer with Complainants regarding their motion but failed to do so. Respondent's Motion is procedurally deficient and should be denied and/or stricken for this reason alone. *See English v. Wash. Metro. Area Transit Auth.*, 323 F.R.D. 1, 25 (D.D.C. 2017) ("This Court routinely denies non-dispositive motions for failure to comply with [meet and confer requirements]") (citing cases).

II. Respondents' Sur-Reply Should Be Stricken From the Record

Not only did Respondents fail to comply with their meet and confer obligations, but they also impermissibly filed a sur-reply in this case. The full proposed sur-reply put in the record as an attachment to the Motion, and a significant portion of it is repeated verbatim in Respondents' Memorandum in Support of Respondents' Motion. (*Compare, e.g.,* Respondents' Mem. at 4-5 with Sur-Reply at 3-4.) Accordingly, the Motion in its entirety should be stricken from the record as an improperly filed sur-reply. *See Carlstar Group LLC, et al. v. Uti, United States, Inc. et al.*, Docket No. 17-08, Order Striking Complainant's Sur-Reply (FMC Feb 23, 2018) (striking is the appropriate remedy for an impermissible sur-reply).

To the extent the Motion is not stricken, at a minimum, the sur-reply should be stricken. Alternatively, given that any additional argument in Respondent's Exhibit A is an attempt to circumvent page limits for motions in 46 C.F.R. § 502.71(d), such additional material should be stricken from the record as improperly filed. *Id.*

III. Sur-Reply is Unwarranted Because No New Evidence or Argument was Introduced in TPG's Reply

Sur-replies are generally disfavored. *See, e.g., Seafair USA LLC v. Sterling Container Line Ltd. et al.*, Docket No. 22-34, 2023 WL 6811143, at *1 (FMC Oct. 10, 2023) (citing *Kifafi v. Hilton Hotels Retirement Plan*, 736 F. Supp. 2d 64, 69 (D.D.C. 2010)). In deciding whether to allow a sur-reply, a court should consider (A) whether the reply actually raises arguments or issues for the first time, (B) whether the proposed sur-reply would aid resolution, and (C) whether prejudice would result from leave being granted. *Id.* (citing *Glass v. Lahood*, 786 F. Supp. 2d 189, 230-31 (D.D.C. 2011)). "A sur-reply should not be used as a means of getting the last word or endlessly prolonging briefing – where the arguments raised in a reply fall within the scope of the matters raised in the opposition, and even where the reply mischaracterizes factual

and legal arguments in the opposition, a sur-reply is not normally appropriate because the court is capable of ascertaining the merits of the parties' positions on its own." *Id.* (citing *Crummey v. Soc. Sec. Admin.*, 794 F. Supp. 2d 46, 63 (D.D.C. 2011)). Here, **Respondents are merely repeating and expanding on arguments they have previously made**, and indeed are simply impermissibly trying to "get the last word."

A. Sur-Reply is Unwarranted Because Complainant's Reply Did Not Raise New Arguments or Introduce New Evidence

Respondents' Motion mischaracterizes TPG's rebuttals to the Joint Response as new arguments. TPG did not introduce any new evidence, arguments, or issues in its Reply.

First, Respondents allege that the revised Shipment and Damages Charts are new evidence. Respondents are incorrect because, as explained above, the revised Shipment Chart and Damages Chart were adjusted to *exclude* the damages TPG is withdrawing from its claim and did not *add* any damages. TPG's Reply Brief did not add any new documents underlying the Shipment Chart and Damages Chart. Respondents feign confusion, claiming that they initially believed that Shipment Chart, rather than the Damages Chart contained TPG's damages, however the title of the Damages Chart is self-explanatory.

Second, Respondents also assert that TPG's counsel's declarations accompanying the Shipment Chart and Damages Chart in TPG's Reply constitute "new evidence." (Mot. at 5). However, **TPG merely responded to the Joint Response's arguments** that the Shipment Chart and Damages Chart were not admissible. (*See* Joint Resp. at p. 2; *e.g.*, Joint Resp. to Complainant's Proposed Findings of Fact at 21.)

Third, Respondents argue that TPG "quietly" advanced a new damages theory. There is nothing new about TPG's damages methodology. In both the Opening Brief and Reply TPG explained that the basis of its damages is Omni and Epic's failure to provide proof of the

propriety of significant pass-through charges and how charges for the demurrage, storage, and chassis categories were calculated. (*See, e.g.*, Opening Br. at 23, 30-31; Reply at 7, 34-40).

B. The Proposed Sur-Reply Would Not Aid Resolution of This Dispute Because It Simply Reiterates Respondents' Previous Arguments

The brunt of Respondent's argument is that the revised Shipment and Damages Chart TPG submitted to assist the Presiding Officer in evaluating the claim should not be admitted because they allegedly constitute new inadmissible evidence. This is the same argument that Respondents made in their Joint Response. Respondents argue that TPG's response to their claims of inadmissibility is a new argument. (Mot. at 5.) Respondents further complain that TPG cannot submit recalculated damages but admit that **TPG withdrew certain aspects of its claims** – there is no new claim or evidence that merits a second bite at the apple for Respondents. (Mot at 1-2.) The logic of Respondents' arguments is incredulous. On the one hand, Respondents argue that the revised charts are not admissible evidence, but on the other hand, they claim that these charts are new evidence that the Presiding Officer should disregard. Both of these arguments cannot be correct at the same time. If the charts are inadmissible, they cannot also constitute new evidence. Respondents cannot have their cake and eat it too.

In any case, the Commission's admissibility rules are much more liberal than Federal Rules of Evidence: "all evidence which is relevant, material, reliable and probative, and not unduly repetitious or cumulative, will be admissible. All other evidence will be excluded. The presiding officer may consider the Federal Rules of Evidence for guidance." 46 C.F.R. 502.204(a). Therefore, even if evidence is not technically admissible under the Federal Rules of Evidence, the Presiding Officer has the authority to admit evidence that is "relevant, material, reliable and probative, and not unduly repetitious or cumulative." *See FTC v. Cement Institute*, 333 U.S. 683, reh'g denied, 334 U.S. 839 (1948) (holding that administrative agencies are not

restricted by rigid rules of evidence). Respondents fail to allege that the evidence submitted by TPG does not comply with the regulatory requirements. Further, similar charts have been admitted without declarations from counsel in several cases before the Commission. *See Worldwide Relocations*, 31 S.R.R. 1471, 1505 2010 WL 11768817 *34-35 (ALJ 2010) (admitting similar charts although the Bureau of Enforcement, which submitted the charts, did not provide a specific basis for admission of the charts).

Incredibly, Respondents also complain that TPG *reduced* its damages computation in response to Respondents' argument concerning certain charges in connection with the Ship Canal project and the minimum quoted chassis charges. Respondents are also unhappy with the reduction of damages for the additional \$96,420.34 because those charges "appear[] to reflect demurrage charges for which an underlying carrier invoice was included." (Mot. at 7.) On that basis, Respondents proceed to misinterpret TPG's position to mean that Respondents' charges must always include invoices. *Id.* TPG's position is not as narrow as Respondents' strawman argument purports it to be. As TPG has already explained, it is not TPG's contention that charges must always include underlying invoices. TPG would be satisfied with other documentation supporting the reasonableness of the charges, but Respondents failed to provide such documentation. (Reply at 17.) Respondents plead that they should be afforded the opportunity to address what they describe as TPG's "constantly evolving" damages calculation, however, the only response they offer in the proposed Sur-Reply is the repetition of the argument they made in their Joint Response, citing the Initial Decision in *Bakerly, LLC v. Seafrigo USA Inc.* (Compare Mot. at 7 and Joint Response at 12). Respondents should not be permitted to take a second bite at the apple and reiterate the same arguments they already made in Joint Response.

Furthermore, Respondents misleadingly attempt to use TPG's inclusion of 7,518 pages of documents in its appendix to suggest that Respondents provided sufficient documentation for their invoices. The opposite is true. The fact is that Respondents failed to explain, *invoice by invoice*, as they should have if they could, which they did not, how the documentation diligently compiled by TPG supports the Respondents' charges. It is incredible that out of 7,518 pages of documents, Respondents failed to find a single page of documents that would support the validity of their invoices issued to TPG.

Respondents' sur-reply is merely an attempt to reiterate and supplement the arguments already expressed in their Response Brief, including not only the alleged inadmissibility of the charts, but also the alleged deficiencies thereof. (*See, e.g.*, Mot. at 5 ("TPG *still* fails to address...") (emphasis added); *id.* at 7-8 ("TPG *Continues* to Claim...") (emphasis added); *id.* at 6 (referring to deposition testimony).) Accordingly, the proposed sur-reply does not respond to new argument or evidence and would not aid in the resolution of this case.

C. TPG Would Be Prejudiced If Leave Were Granted for the Proposed Sur-Reply

Following TPG's Reply, the case was fully briefed. (Order, March 1, 2024 (ordering new deadlines for remaining filings).) The Motion is simply an attempt "to get the last word" and needlessly extend briefing with repetitive arguments, which would prejudice TPG by disrupting the anticipated order of briefing. For example, Respondents already argued in their Response that TPG is not entitled to damages for charges Respondents invoiced and that were disputed and not paid by TPG. (*E.g., compare* Joint Resp. at 33 *with* Mot. at 7-8.) Respondents already challenged the admissibility of TPG's charts in their Joint Response. (*E.g., compare* Joint Resp. at 2 *with* Mot. at 4-5.) Accordingly, the proposed sur-reply should not be granted. The Presiding Officer is capable of ascertaining the merits of the parties' position on the existing record. However, if the

Presiding Officer chooses to grant the motion to file sur-reply, TPG should have an opportunity to respond.

IV. Respondents Fail to Meet Standard for Supplementing the Record

Respondents should not be permitted to introduce new evidence (credit card receipts and invoices) that they have had ample opportunity to present earlier in the proceedings. Respondents assert that the Damages Chart “omits” certain documents. However, because nothing was *added* to the Damages Chart, Respondents by definition had sufficient information to make this allegation and submit the allegedly missing documents with its Joint Response. In fact, these documents should have been provided to TPG before this litigation even took place. However, Respondents failed to do so. Respondents never previously objected to the fact that TPG included in its Appendix the complete set of documents Respondents provided to TPG to “support” their charges and cannot at this late stage complain that TPG did not provide the full universe of documents Respondents claim support their obscene charges. By no means should Respondents’ belated attempt to contest the record be allowed at this point.¹

Further, as TPG has already made abundantly clear, credit card receipts alone may establish that Respondents paid the charges, but with no detail to allow TPG to evaluate the correctness or validity of the charges, Respondents fail to meet their obligation to support the reasonableness of substantial pass-through charges. (*E.g.*, Reply at 13-16.)²

¹ If the Presiding Officer allows Respondents to submit additional documents, TPG should be permitted sufficient time to review those documents and submit its comments in that regard.

² In the event the Presiding Officer grants Respondents’ request to supplement the record, which TPG objects to, TPG should be permitted sufficient time to review and respond to the Respondents’ submission.

CONCLUSION

For the foregoing reasons, the Respondents' Motion for Leave to File a Sur-Reply and Supplement the Record should be stricken, or, in the alternative, denied; if the Commission decides to grant the Motion, then TPG should be given an opportunity to respond.

Dated: May 7, 2024

Respectfully submitted,

PIERSON FERDINAND LLP

By: /s/ Tiffany N. Compres
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*Counsel for Complainant
TPG Pressure, Inc.*

CERTIFICATE OF SERVICE

I certify that on May 7, 2024, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 C.F.R. Part 502 and the Commission's Initial Order of December 6, 2022, as follows:

BENESCH, FRIEDLANDER, COPLAN & ARONOFF LLP
Marc S. Blubaugh
mblubaugh@beneschlaw.com
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41 S. High Street. Suite 2600
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Telephone: (614) 223-9300
Facsimile: (614) 223-9330

/s/ Gene M. Burd

Gene M. Burd

Exhibit B

RE: Docket No. 22-31 - TPG Pressure, Inc. v. Omni Logistics LLC and Epic Freight Solutions LLC**Gene Burd** <gene.burd@pierferd.com>

Fri 2024-05-17 6:42 PM

To: Judges <Judges@FMC.gov>

Cc: secretary@fmc.gov <secretary@fmc.gov>; Marc S. Blubaugh <mblubaugh@beneschlaw.com>; Nicholas P. Lacey <nlacey@beneschlaw.com>; Tiffany Compr s <tiffany.compres@pierferd.com>; Vitaly Morozov <vitaly.morozov@pierferd.com>; Kristin Drecktrah Paz <kristin.paz@pierferd.com>

 1 attachments (216 KB)

Docket No. 22-31 - TPG Pressure, Inc. v. Omni Logistics LLC and Epic Freight Solutions LLC;

Dear Judges of the Commission,

We are in receipt of the Order Requiring Parties to Supplement the Record. The Order states: "The time for TPG to object to the sur-reply has expired without any objection being received." Order at 3.

However, on May 7, 2024, TPG Pressure Inc. submitted the attached email with its Opposition to Respondent's Motion for Leave to File a Sur-Reply and to Supplement the Record.

We respectfully request that the attached document be filed with the filing date of May 7, 2024, when the submission was made. We also respectfully requests that the Order be revised considering the Opposition.

Regards,

Gene M. Burd
Partner/Co-Chair International Disputes**PIERSON FERDINAND**

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From: Judges <Judges@FMC.gov>

Sent: Wednesday, May 15, 2024 2:53 PM

To: Gene Burd <gene.burd@pierferd.com>; Lourdes.Gonzalez@pierferd.com; Marc S. Blubaugh <mblubaugh@beneschlaw.com>; Nicholas P. Lacey <nlacey@beneschlaw.com>; Tiffany Comprés <tiffany.compres@pierferd.com>; Yine Rodríguez Pérez <yine.rodriguezperez@pierferd.com>

Subject: Re: Docket No. 22-31 - TPG Pressure, Inc. v. Omni Logistics LLC and Epic Freight Solutions LLC

Good afternoon,

Please see attached an “Order Requiring Parties to Supplement the Record,” issued by the Honorable Erin M. Wirth, being served today in Docket No. 22-31. A brief statement acknowledging receipt of the order would be greatly appreciated.

Sincerely,

Office of Administrative Law Judges
Federal Maritime Commission
800 North Capitol St., NW
Washington, D.C. 20573
Tel: 202-523-5750
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